
8:30 a.m. Law and Motion

AKBARI VS. WESTERN TRUCK CENTER, ET AL.

CASE NUMBER: 23CV-0202398

Tentative Ruling on Motion for Summary Judgment or Summary Adjudication: Defendant Western Truck Center (“Western Truck”) moves for summary judgment or in the alternative, for summary adjudication, as to each cause of action of Plaintiff Amir Akbari’s First Amended Complaint. Western Truck also seeks summary judgment or in the alternative, for summary adjudication, as to each cause of action of its Cross-Complaint. Plaintiff opposes the Motion.

Standard on Summary Judgment. The party moving for summary judgment bears the initial burden to make a prima facie showing that there are no triable issues of material fact. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850. There is a genuine issue of material fact only if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* at 845. A defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. CCP § 437c(p)(1). The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto. CCP § 437c(p)(2).

In ruling on a motion for summary judgment, the Court must consider not only the direct evidence presented, but also reasonable inferences to be drawn therefrom, and must view the evidence and inferences “in the light most favorable to the opposing party.” CCP § 437c(c); *Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at 843. “Because summary judgment is a drastic measure that deprives the losing party of trial on the merits, it may not be invoked unless it is clear from the declarations that there are no triable issues of material fact.” *Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 304. “A summary judgment motion is directed to the issues framed by the pleadings. Those are the only issues a motion for summary judgment must address.” *Van v. Target Corp.* (2007) 155 Cal. App. 4th 1375, 1387.

Plaintiff Akbari generally alleges that Western Truck failed to give his third-party warranty administrator, National Truck Protection (“NTP”), information needed after his truck broke down in February 2023. He asserts breach of implied contract, negligent interference with business prospect, and negligence. Western Truck contends the evidence establishes it fully performed the diagnostic and tear-down services Akbari authorized under a signed written contract, acted with reasonable care, sent NTP the required documentation, and had no duty regarding NTP’s coverage decision. Western Truck also contends Akbari breached the parties’ written contract by failing to pay for services and for long term storage of the truck.

Plaintiff’s First Amended Complaint alleges three causes of action: 1) Breach of Implied Contract; 2) Negligent Interference with Business Prospect; and 3) Negligence. Defendant’s Cross-Complaint alleges two causes of action: 1) Breach of Contract and 2) Unjust Enrichment. Defendant Western Truck Center has noticed five issues for summary judgment or in the

alternative summary adjudication: 1) Plaintiff cannot establish the elements of its claim for breach of implied contract; 2) Plaintiff cannot establish the elements of its claim for negligent interference with business prospect; 3) Plaintiff cannot establish the elements of its claim for negligence; 4) Western Truck is entitled to summary judgment or adjudication on its breach of contract claim; 5) Western Truck is entitled to summary judgment or adjudication on its claim for unjust enrichment.

Matters Deemed Admitted. Pursuant to CCP § 2033.410(a), any matter admitted in response to a request for admission is conclusively established against the party making the admission in the pending action. “A party opposing a motion for summary judgment cannot offer evidence that contradicts its own judicial admissions. (*Visueta v. General Motors Corp.* (1991) 234 Cal.App.3d 1609, 1613.) “[A] judicial admission cannot be rebutted: It estops the maker.” (*Uhrich v. State Farm Fire & Casualty Co.* (2003) 109 Cal.App.4th 598, 613.) ... Accordingly, these judicial admissions are binding and dispositive without further evidence. (*See, e.g., Kurinij v. Hanna & Morton* (1997) 55 Cal.App.4th 853, 870–871.) “On summary judgment such admissions are proper and overcome evidence even when the opposing party seeks to contradict the prior admission.” (*Id.* at p. 871.)” *Vieira Enterprises, Inc. v. City of East Palo Alto* (2012) 208 Cal.App.4th 584, 598-599.

On April 13, 2026, the Court entered an order deeming admitted Western Truck’s Requests for Admission. These are conclusively established against Plaintiff. They establish that Western Truck performed the requested services, did not fail to perform any part of them, acted reasonably, and did not cause harm. They establish that Plaintiff agreed to pay Western Truck for diagnostic services, that Western Truck performed those services, Plaintiff received the invoice for those services and never paid. Plaintiff further admitted that he has no witnesses or documents to support his allegations. The only evidence Plaintiff offers in support of his Opposition to the Motion, are three emails between counsel and third parties who counsel represents are representatives of NTP, and another mechanic shop. These third parties have not submitted declarations, and these emails do not establish the facts they are cited to support in the separate statement. Additionally, this evidence cannot overcome facts deemed admitted.

Moreover, Plaintiff’s Opposition to this Motion does not address the five issues raised for summary adjudication. Instead, Plaintiff advances a new theory, not alleged in the FAC, which is “breach of mutual benefit bailment (called Deposit in the Code)” and refers to Civil Code 1814. Neither this cause of action, nor the facts now alleged to support it, are set forth in the FAC. The FAC alleges negligence on the basis of Western Truck’s failure to provide information to NTP. The Opposition argues mutual benefit bailment is in essence the same as a claim for negligence and alleges that Western Truck was negligent in leaving the engine exposed to the elements for over a year, leading to ruination of the engine. “Moving defendants have the burden on summary judgment of negating only those theories of liability as alleged in the complaint and are not obliged to refute liability on some theoretical possibility not included in the pleadings, simply because such a claim was raised in plaintiff’s declaration in opposition to the motion for summary judgment.” *Nativi v. Deutsche Bank National Trust Co.* (2014) 223 Cal.App.4th 261, 290. Thus, the Court need not reach the extraneous issue of mutual benefit bailment raised for the first time in the Opposition papers and will instead reach the merits of the causes of action raised in the FAC and Cross-Complaint.

Issue 1: Plaintiff cannot establish the elements of its claim for breach of implied contract.

“A contract may be written, oral or inferred from the parties' conduct as an “implied-in-fact” contract. An implied contract must be founded upon an ascertained agreement of the parties to perform it. Accordingly, an implied-in-fact contract “consists of obligations arising from a mutual agreement and intent to promise where the agreement and promise have not been expressed in words.” (*Aton Center, Inc. v. United Healthcare Ins. Co.* (2023) 93 Cal.App.5th 1214, 1230 [a claim for breach of an implied contract has the same elements as a claim for breach of a written contract, except that the promise is not expressed in words but is implied from conduct].” *Siskiyou Hospital, Inc. v. County of Siskiyou* (2025) 109 Cal.App.5th 14, 52 (internal citations omitted). Thus, the essential elements are 1) existence of the implied-in-fact contract, 2) performance or excuse for nonperformance, 3) breach, and 4) damages.

Here, Plaintiff's FAC alleges an implied-in-fact contract arose when Western Truck accepted his truck for repair, that Western truck breached by delaying repairs and by not providing information and documents to NTP. (UMF 1) The parties have a valid written contract covering the terms of service, which Western Truck fully performed. (UMF 2-4) Plaintiff requested Western Truck perform diagnostic and tear-down work (UMF 3-5), that Western Truck fully performed (UMF 6-7), acted with reasonable care (UMF 8), documented what it found and sent in a parts-and-approval request to NPT (UMF 9), and that Western Truck did not cause Plaintiff harm (UMF 21). Defendant has carried its burden to establish no triable issue of material fact remains as to the existence of a contract, performance, breach, and damages. Plaintiff cannot overcome the facts deemed admitted and has failed to rebut with admissible evidence. Summary judgment is **GRANTED**.

Issue 2: Plaintiff cannot establish the elements of its claim for negligent interference with business prospect.

“The tort of negligent interference with prospective economic advantage is established where a plaintiff demonstrates that (1) an economic relationship existed between the plaintiff and a third party which contained a reasonably probable future economic benefit or advantage to plaintiff; (2) the defendant knew of the existence of the relationship and was aware or should have been aware that if it did not act with due care its actions would interfere with this relationship and cause plaintiff to lose in whole or in part the probable future economic benefit or advantage of the relationship; (3) the defendant was negligent; and (4) such negligence caused damage to plaintiff in that the relationship was actually interfered with or disrupted and plaintiff lost in whole or in part the economic benefits or advantage reasonably expected from the relationship.” *Venhaus v. Shultz* (2007) 155 Cal.App.4th 1072, 1078.

Here, Plaintiff alleges that Western Truck had a duty to promptly repair his truck or provide information to NTP for it to pay for repairs and release his truck, and that Western Truck negligently interfered with Plaintiff's business prospects by failing to act with reasonable care. Western Truck argues that Plaintiff cannot satisfy the causation requirement of this claim. Western Truck has carried its burden to establish no triable issue of fact remains as to causation, because Plaintiff cannot show it was reasonably probable that he would have received warranty coverage from NTP but for Western Truck's alleged interference. NTP denied coverage based on its determination that wear and tear was not covered under its warranty. (UMF 31-37.) Plaintiff's truck suffered major internal engine problems and was inoperable when delivered to Western Truck, indicating preexisting conditions that would likely have resulted in warranty denial regardless of Western Truck's conduct. (UMF 29-31.) The warranty decision was made by NTP

based on its own coverage standards and exclusions, not due to any action by Western Truck. (UMF 35, 36.) Plaintiff cannot overcome the facts deemed admitted and has failed to rebut any of this with admissible evidence. Summary judgment is **GRANTED**.

Issue 3: Plaintiff cannot establish the elements of its claim for negligence.

“It is established law that plaintiff, in order to prove negligence on the part of a defendant, must establish a duty owed, a breach of that duty, proximate cause of injury and damages.” *Frantz v. San Luis Medical Clinic* (1978) 81 Cal.App.3d 34, 39.

Here, plaintiff has admitted Western Truck performed the requested diagnostic services (UMF 39) did not fail to perform any part of them (UMF 40) acted with reasonable care (UMF 41) and did not cause harm. (UMF 42.) Additionally, Plaintiff cannot establish the element of duty because Plaintiff never had a written contract with Western Truck in which it proposed to provide information to any third party or to NTP. (UMF 43.) Defendant has established there are no triable issues as to the claim for negligence. Plaintiff cannot overcome the facts deemed admitted and has failed to rebut with admissible evidence. Summary judgment is **GRANTED**.

Issue 4: Western Truck is entitled to summary judgment or adjudication on its breach of contract claim.

“To be entitled to damages for breach of contract, a plaintiff must plead and prove (1) a contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) damage to plaintiff.” *Troyk v. Farmers Group, Inc.* (2009) 171 Cal.App.4th 1305, 1352.

Here, Plaintiff admitted that he signed a written contract with Western Truck for diagnostic services. (UMF 51, 52.) Western Truck performed the services (UMF 54), did not fail to perform any portion of the services (UMF 55), and performed the services with reasonable care (UMF 56). Plaintiff breached the terms of the contract by failing to pay. (UMF 61.) Additionally, Plaintiff abandoned his truck at Western Truck for nearly a year (UMF 63) and therefore owes Western Truck storage fees per the terms of the contract totaling \$15,840.00. Defendant has demonstrated no triable issues of material fact remain as to its claim for breach of contract against Plaintiff. Plaintiff has failed to rebut with admissible evidence. Summary judgment is **GRANTED**.

Issue 5: Western Truck is entitled to summary judgment or adjudication on its claim for unjust enrichment.

Cross-Complainant Western Truck alleges unjust enrichment in the alternative to its breach of contract claim. The Court has found in favor of Western Truck on the breach of contract claim. Plaintiff cannot recover on both theories. “[A]n action based on an implied-in-fact or quasi-contract cannot lie where there exists between the parties a valid express contract covering the same subject matter.” (*Lance Camper Manufacturing Corp. v. Republic Indemnity Co.* (1996) 44 Cal.App.4th 194, 203.) However, “restitution may be awarded in lieu of breach of contract damages when the parties had an express contract, but it was procured by fraud or is unenforceable or ineffective for some reason.” *Rutherford Holdings, LLC v. Plaza Del Rey* (2014) 223 Cal.App.4th 221, 231. Having concluded that Cross-Complainant prevails on the breach of contract claim, summary judgment on the unjust enrichment alternative theory is **DENIED**.

Defendant's Motion for Summary Judgment is **GRANTED** as to Issues 1-4. As Issue 5 was argued in the alternative, this result affords complete relief in Defendant's favor on both the First Amended Complaint and the Cross Complaint. A proposed order has been lodged and will be executed.

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Tentative Ruling on Motion for Terminating Sanctions: Defendant Western Truck Center moves for an order of terminating sanctions, or in the alternative evidentiary sanctions. Plaintiff also requests sanctions to be imposed jointly and severally against Plaintiff and Counsel in the amount of \$13,450. Plaintiff opposes the motion.

Merits: Misuses of the discovery process include disobeying a court order to provide discovery. CCP § 2023.010(g). The court may impose sanctions against anyone engaging in misuse of the discovery process, including monetary, issue, evidence, and terminating sanctions. CCP § 2023.030. Monetary sanctions shall be imposed unless the court finds the one subject to the sanction acted with substantial justification making imposition of sanctions unjust. CCP § 2023.030(a). Issue, evidence, and terminating sanctions may be imposed. CCP § 2023.030(b), (c), and (d); 2025.450(h).

"The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. "Discovery sanctions 'should be appropriate to the dereliction and should not exceed that which is required to protect the interests of the party entitled to but denied discovery. If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. "A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction." *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal. App. 4th 967, 992 (internal citations omitted).

In this action, the Court has previously issued three separate Orders on Defendant's motions for Plaintiff's repeated misuse of the discovery process. The Court imposed sanctions totaling \$9,600. Plaintiff concedes that he has not complied with any of the three Orders and has not paid any of the sanctions. Further, Plaintiff concedes to spoliation of evidence, by selling the truck which is the subject of this dispute, despite executing a stipulation to preserve it. No explanation is provided other than that the Plaintiff could not afford to keep the truck. The Court finds that the violations here are willful, preceded by a history of abuse, and that lesser sanctions would not produce compliance. The totality of circumstances here weigh in favor of terminating sanctions. However, Defendant has also filed a Motion for Summary Judgment, which is set for hearing today. In a separately issued tentative ruling, the Court intends to grant Summary Judgment in favor of Defendant/Cross-Complainant on all causes of action in the First Amended Complaint and the Cross-Complaint. This result moots the request for terminating sanctions.

Sanctions: The court may impose sanctions against anyone engaging in misuse of the discovery process, including monetary, issue, evidence, and terminating sanctions. CCP § 2023.030. Monetary sanctions shall be imposed unless the court finds the one subject to the sanction acted with substantial justification making imposition of sanctions unjust. CCP § 2023.030(a).